

ELIZABETH II



1972 CHAPTER v

An Act to confer further powers on the Clyde River Purification Board in relation to the control of polluting discharges in or to underground strata and the promotion of cleanliness of the waters of their area; and for other purposes.

[11th May 1972]

WHEREAS the Clyde River Purification Board (hereinafter in this Act referred to as “the Board”) were constituted in pursuance of the Rivers (Prevention of Pollution) (Scotland) Act, 1951 (hereinafter in this Act referred to as “the Act of 1951”), as the authority responsible for promoting the cleanliness of the rivers and other inland waters and the tidal waters, and for conserving the water resources so far as practicable, within the Clyde River Purification Board Area: 1951 c. 66.

And whereas for the better fulfilment of such responsibilities it is expedient to make provision for the control by the Board of discharges in or to underground strata within their area of trade or sewage effluent and other polluting matter:

And whereas it is expedient to make provision as in this Act contained for the taking by the Board of emergency and other measures to remedy or prevent the accidental pollution of streams and of measures for the removal therefrom of polluting matter:

And whereas for the better promotion by the Board of the cleanliness of streams it is expedient that the Board should be authorised as in this Act provided to control the taking of sand and gravel from streams in their area; and that provision should be made for the acquisition and operation, or for the operation by agreement with the owners, of reservoirs in the interests of the functions of the Board:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Clyde River Purification Board Act 1972.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires, the several words and expressions to which meanings are assigned by the Act of 1951 and the Act of 1965 shall have the same respective meanings and the following expressions shall have the meanings hereby respectively assigned to them:—

1951 c. 66.

“ the Act of 1951 ” means the Rivers (Prevention of Pollution) (Scotland) Act, 1951;

1965 c. 13.

“ the Act of 1965 ” means the Rivers (Prevention of Pollution) (Scotland) Act, 1965;

“ the appointed day ” means 1st January, 1973;

“ the Board ” means the Clyde River Purification Board;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation for the time being in force within the area of the Board;

“ underground strata ” means strata subjacent to the surface of any land;

“ water board ” means a regional water board or, in a context which admits such construction, a regional water board or a water development board;

1946 c. 42.

“ waterworks ” has the same meaning as in the Water (Scotland) Act, 1946.

(2) Unless the subject or context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including this Act.

3.—(1) Subject to the provisions of the next following section and of section 7 (Protection of sources of supply) of this Act, as from the expiration of the period of three months beginning with the appointed day it shall not be lawful (otherwise than in accordance with good practice in agriculture as defined in section 86 of the Agriculture (Scotland) Act, 1948) knowingly to discharge in or to any underground strata within the area of the Board—

- (a) any trade effluent or sewage effluent; or
- (b) any poisonous, noxious or polluting matter not falling within the preceding paragraph;

except with the consent of the Board, which consent shall not be unreasonably withheld, and which may be granted subject to any conditions imposed by the Board in accordance with the next following subsection.

(2) On an application for consent under this section, the Board, if they grant consent, may grant it either unconditionally or subject to such conditions as they may reasonably impose as to any one or more of the following matters, that is to say:—

- (a) the nature or composition, temperature, volume or rate of discharge of the effluent or other matter to be discharged;
- (b) the point of discharge, and the strata in or to which the effluent or other matter may be discharged;
- (c) measures to be taken for protecting water contained in other underground strata;
- (d) the provision of facilities for inspection, including the provision, maintenance and use of observation wells and boreholes.

(3) If, within the period of three months beginning with the date on which an application is made to the Board for consent under this section or within such extended period as may at any time be agreed upon in writing between the applicant and the Board, the Board do not give notice to the applicant of their decision on the application, the Board's consent shall be deemed to be granted unconditionally at the expiration of that period.

(4) Any person who contravenes subsection (1) of this section, or (in circumstances not constituting such a contravention) does not comply with a condition subject to which a consent granted under this section for the time being has effect, shall be guilty of an offence, and paragraphs (a) and (b) of subsection (1) of section 9 of the Act of 1965 (which relates to penalties and proceedings for certain offences) shall apply with respect to any offence under this section as those paragraphs apply with respect to any contravention of or offence punishable under the provisions specified in that subsection.

(5) The provisions of sections 5 and 6 of the Act of 1965 shall apply (subject to the modifications specified in subsection (6) of this section and to any other necessary modifications) with respect to—

- (a) the grant or refusal of consents (with or without conditions) under this section;
- (b) the giving of notice as mentioned in the said section 5 for the purposes of this section; and
- (c) appeals to the Secretary of State by any person who is aggrieved, being an applicant for consent under this section, or a person on whom such a notice is served under the said section 5 for the purposes of this section;

as those provisions apply to the grant or refusal of consents, the service of notices and to appeals mentioned in those sections.

(6) The provisions of the said sections 5 and 6 as so applied shall have effect as if—

- (a) in subsection (1) of section 5 the words from “and the Secretary of State” to the end of the subsection were omitted;
- (b) in subsection (2) of section 5, there were substituted for the words “commencement of this Act” the words “expiration of the period of three months beginning with the appointed day (within the meaning of the Clyde River Purification Board Act, 1972)”;
- (c) in subsection (1) of section 6 there were inserted after the word “notice”, where it thirdly occurs, the words “(or such longer period as the Secretary of State may at any time allow)”; and
- (d) in subsection (4) of section 6 there were substituted for the words “shall if the appellant or the river purification authority so require”, the words “may, if he thinks fit, and shall, if the appellant or the river purification authority so require, cause a local inquiry to be held, or”.

4.—(1) Subsection (1) of the last preceding section shall not apply to any discharge of an effluent or other matter which is made in the circumstances specified in the next following subsection. Transitional exemption of discharges from control.

(2) The said circumstances are—

- (a) that the person discharging the effluent or other matter has, on one occasion at least within the period of twelve months ending with the appointed day, discharged matter of the same nature or composition in or to the same underground strata by the same means;
- (b) that he has, during the period of three months beginning with the appointed day, applied to the Board for consent under the last preceding section to discharge matter of that nature or composition in or to those underground strata by those means, and that the discharge in question occurs on a day before the application has been disposed of; and
- (c) that the aggregate volume of matter of the nature or composition in question which is discharged by that person in or to those underground strata during the whole of that day does not exceed the greatest volume of matter of that nature or composition which was discharged by him in or to those strata on any one day within the period referred to in paragraph (a) of this subsection.

(3) For the purposes of this section an application shall be taken to be disposed of on (but not before) the occurrence of whichever of the following events last occurs, that is to say:—

- (a) on the determination of the application by the Board, their consent is given or is deemed to be given and the consent is in accordance with the proposals contained in the application;
- (b) the period within which the applicant is entitled to give notice of appeal against the decision on the application expires without such a notice having been given;
- (c) an appeal against that decision is determined or withdrawn.

5. For the protection of Inver House Distillers Limited (hereinafter referred to as “the company”) the following provisions shall, unless otherwise agreed in writing between the Board and the company, apply and have effect:— For protection of Inver House Distillers Limited.

(1) If at the appointed day the company affords evidence to the reasonable satisfaction of the Board—

- (i) that arrangements have been made and are being operated on a permanent basis whereby the provost, magistrates and councillors of the burgh of Airdrie

(hereinafter referred to as "the Airdrie Town Council") are receiving into their sewage works from the distillery works of the company at Airdrie effluent (excluding cooling water) with a biochemical oxygen demand loading of not less than 8,400 pounds per day;

(ii) that the Airdrie Town Council have agreed to receive and treat at their sewage works on a permanent basis a further quantity of the company's effluent (excluding cooling water); and

(iii) that the Airdrie Town Council have agreed to extend the said sewage works in accordance with a time-table acceptable to the Board as may be necessary for such treatment;

then the Board will grant consent to the company pursuant to section 3 (Control of discharges in or to underground strata) of this Act for the discharge by the company at the present borehole situate at their said works of a quantity of effluent (excluding cooling water) not exceeding the said further quantity but the consent shall be operative for such period only as may be reasonably required for the construction and bringing into operation of the requisite further extension of the Airdrie Town Council's sewage works and shall be subject to a condition that the five-day biochemical oxygen demand at 20 degrees centigrade shall not exceed 1,500 milligrams per litre; and to a condition requiring provision by the company on the pipelines leading to the borehole and to the public sewer of integrated flow recorders and automatic sampling equipment of designs approved by the Board and accessible to the Board's inspectors and providing information reasonably required by them regarding all trade effluents discharged by the company:

(2) Subject to the company affording evidence in accordance with paragraph (1) (i) of this section, the Board will grant consent to the company pursuant to the said section 3 of this Act for the discharge by the company at the present borehole situate at their said works of such quantity as may be reasonably necessary—

(i) if the Airdrie Town Council are, owing to breakdown of their sewage works or any other unforeseeable emergency, unable to accept the discharge to their sewers; or

(ii) if an unforeseeable emergency leads to the breakdown of the plant of the company for pre-treating their effluent to a standard acceptable to the said town council for receipt into their sewers:

- (3) Pending commencement of disposal of the company's effluent (excluding cooling water) to the sewage works of the Airdrie Town Council and provided that there is in this respect no undue delay by the company or that council, the Board will take no action to prevent continuance of the discharge of such effluent to the company's said borehole of a quantity and content not substantially greater nor more polluting than the discharge being made on and about 1st November, 1971:
- (4) The Board will take such reasonable steps as by using their good offices will assist the company in arranging for the acceptance by the Airdrie Town Council into their sewers of all trade effluent from time to time required to be disposed of by the company from their works at Airdrie:
- (5) In the event of the Board suggesting to the company a reasonably suitable alternative point of discharge which in the opinion of the Board would be less likely than the present borehole to give rise to pollution of streams, the foregoing paragraphs of this section shall apply, after the lapse of such reasonable period as may be notified to the company in writing by the Board, to the proposed new point of discharge and not to the present point of discharge at the said borehole:
- (6) Any difference which shall arise between the Board and the company under any of the foregoing provisions of this section (other than a difference as to the meaning or construction thereof) shall be referred to and determined by a single arbiter to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

6. The Board shall maintain a register containing particulars of consents granted by them under section 3 (Control of discharges in or to underground strata) of this Act and subsection (7) of section 28 of the Act of 1951 shall, with necessary modifications, apply with reference to the register maintained by the Board under this section and the particulars contained therein as it applies to the register maintained under that subsection and the particulars contained therein.

Register of consents to underground discharges.

7. Nothing in the last four foregoing sections of this Act nor anything done thereunder shall—

Protection of sources of supply.

- (a) prejudice or affect the provisions of Part IV (Conservation and Protection of Water Resources) of the Water (Scotland) Act, 1946, or any agreement or byelaws of 1946 c. 42.

a water board having effect for the time being under section 58 or section 61, as the case may be, of that Act; or

- (b) permit the making of any discharge which renders or tends to render water taken by a water board from a source of supply for domestic purposes less suitable for the purposes of that supply.

Emergency
and other
measures in
case of
pollution
of waters.

8.—(1) Where it appears to the Board that any poisonous, noxious or polluting matter is present in or is likely to reach a stream in their area, in consequence of an accident or other unforeseen act or event, the Board may carry out such operations as the Board may reasonably consider necessary or expedient for any or all of the following purposes, that is to say:—

- (a) removing that matter from the stream and disposing of it in such manner as the Board consider appropriate;
- (b) remedying or mitigating any pollution caused by its presence in the stream; and
- (c) preventing that matter from reaching the stream.

(2) Where it appears to the Board that driftwood, vegetation, refuse or other matter, which has been suffered to fall into or been deposited in a stream, is impeding the proper flow of the water of the stream in a manner leading or likely to lead (whether or not in combination with other circumstances) to a deterioration in the quality of water in the stream, the Board may take such steps as they consider necessary for the removal of such driftwood, vegetation, refuse or other matter.

(3) The powers conferred by the foregoing provisions of this section do not include power to construct any works, other than works of a temporary character which are removed on or before the completion of the operations.

(4) The Board may recover as a civil debt in any court of competent jurisdiction, from any person who may be proved by the Board to have been the author either of an accident or other unforeseen act or event (in terms of subsection (1) of this section) or of an impediment (in terms of subsection (2) thereof) the cost reasonably incurred by the Board in taking action under the powers of this section.

(5) Before in any case exercising the powers of—

- (a) subsections (1) or (2) of this section in, or in relation to, any artificially constructed inland waterway owned or managed by the British Waterways Board; or
- (b) subsection (1) of this section in, or in relation to, any stream in which any water board for the time being have water rights;

the Board shall consult the interest concerned (being the British Waterways Board or, as the case may be, the said water board) unless, on the exercise of the powers of the said subsection (1) in case of emergency, it is not reasonably practicable to do so in the time available, in which case the Board shall so soon as possible after the carrying out of such operations inform the said interest concerned.

(6) The provisions of this section shall not be construed as authorising on the part of the Board any act which apart from those provisions would be actionable at the instance of any person on any grounds other than a limitation imposed by law on the capacity of the Board by virtue of its constitution.

(7) Nothing in this section shall be construed as derogating from any duty of the Board to enforce the provisions of the Act of 1951 or the Act of 1965 in their area.

(8) Notwithstanding anything in this section the Board shall not under the powers of this section carry out any operations which would prevent or restrict access to any plant, pipes, fittings or other apparatus of the Scottish Gas Board or the Gas Council or which would, or would be likely to, interfere with or adversely affect any operational land of the Scottish Gas Board or the Gas Council or any plant, pipes, fittings or other apparatus situated on such land, without first consulting the Scottish Gas Board or the Gas Council as the case may be before carrying out such operations, unless in case of emergency it is not reasonably practicable to do so in the time available, in which case the Board shall so soon as possible after the carrying out of such operations inform the interest concerned.

9.—(1) As from the appointed day it shall be unlawful to take sand or gravel from any stream within the area of the Board for commercial purposes, except with the consent of the Board, which consent shall not be unreasonably withheld, and subject to such conditions as the Board think fit for the purpose of promoting the cleanliness of the stream and any waters in the area and to which the stream discharges, or of conserving the water resources of the area in terms of section 17 of the Act of 1951.

Control of the
commercial
abstraction of
sand and
gravel from
streams.

(2) On an application for consent under this section, the Board, if they grant consent, may grant it either unconditionally or subject to such conditions as they may reasonably impose; and—

- (a) the provisions of subsections (3) and (4) of section 3 (Control of discharges in or to underground strata) of this Act shall have effect with respect to applications under and contraventions of this section as those provisions have effect with respect to the like matters under and of that section; and

(b) the provisions of section 6 of the Act of 1965 shall apply (with necessary modifications) with respect to—

(i) the grant or refusal of consents (with or without conditions) under this section; and

(ii) appeals to the Secretary of State by any person who is aggrieved, being an applicant for consent under this section;

as those provisions apply to the grant or refusal of consents and to appeals mentioned in that section; but as if in subsection (1) of the said section 6 there were inserted after the word “notice”, where it thirdly occurs, the words “(or such longer period as the Secretary of State may at any time allow)”, and as if in subsection (4) of that section there were substituted for the words “shall if the appellant or the river purification authority so require” the words “may, if he thinks fit, and shall, if the appellant or the river purification authority so require, cause a local inquiry to be held, or”.

(3) The provisions of subsection (1) of this section shall not apply to the taking of sand or gravel from land as respects which—

(a) planning permission has been obtained in that regard prior to the appointed day; or

(b) no material change of use has for the purposes of the Town and Country Planning (Scotland) Acts, 1947 to 1969, been made since 31st December, 1964;

and, in any case where planning permission has been obtained after the appointed day and before consent in that regard has been granted, no condition limiting the period of such consent shall have effect unless a period be specified in and for the operation of such planning permission and the same period is specified in and for the operation of such consent.

(4) Nothing in this section shall apply to any artificially constructed inland waterway comprised in the undertaking of the British Waterways Board, nor to the taking of sand or gravel from a stream by statutory undertakers or local authorities (as respectively defined in the Town and Country Planning (Scotland) Act 1947) for the purposes of or in connection with the exercise of their respective functions.

1947 c. 53.

Power to
acquire and
operate
reservoirs.

10.—(1) The powers of the Board under subsection (1) of section 9 of the Act of 1951 to acquire land by agreement shall include the acquisition of any reservoir (other than a reservoir belonging to a water board) and of any rights to take water from any stream or other source, and subsection (3) of the said section 9 shall extend to enable the Board to sell or otherwise dispose of any such reservoir or rights.

(2) Subject to the provisions of any order with respect to such reservoir or rights made under subsection (3) of this section, the Board may maintain and operate any reservoir and exercise any water rights acquired by them pursuant to subsection (1) of this section for the purpose of promoting the cleanliness of the rivers and other inland waters and the tidal waters in their area.

(3) (a) No agreement to acquire, sell or otherwise dispose of a reservoir or water rights under this section shall have effect unless the Secretary of State has on the application of the Board made an order making such provision as appears requisite with respect to the operation of the reservoir or the exercise of such rights and in making any such order the Secretary of State shall have regard to the like considerations mentioned in subsections (3) to (5) of section 21 of the Water (Scotland) Act 1946 as arise in the 1946 c. 42. approval by him of agreements under that section or in the making of orders for the compulsory acquisition of rights.

(b) Any such order may on the application of the Board be varied or revoked by a subsequent order made by the Secretary of State under this section.

(4) The provisions of Part I of Schedule 1 to the said Act of 1946 shall with all necessary modifications apply to the making of applications and orders under this section and as if for paragraph 9 of the said Part I there were substituted the following paragraph:—

“ 9. In this Part of this Schedule the expression ‘ area affected by the order ’ means in relation to any order so much of the area of the Clyde River Purification Board as lies within the county or counties or the county of a city in which the reservoir or stream or other source to which the order relates is situated.”

11.—(1) The Board may, for the purpose of promoting the cleanliness of the rivers and other inland waters and the tidal waters in their area, enter into an agreement with any water board or with the owner or occupier of any land, with respect to the manner in which any reservoir in the area of the Board is to be operated. Agreements with respect to the operation of reservoirs.

(2) An agreement under this section may contain such incidental and consequential provisions (including provisions of a financial character) as appear to the parties thereto necessary or expedient for the purposes of the agreement.

(3) Where an agreement is made under this section with an owner of land and the agreement provides that the provisions of this subsection shall have effect in relation thereto the agreement, if recorded for publication in the appropriate Division of the General Register of Sasines, shall be binding upon the said

owner's assignees and singular successors or other successors in title in the said land and his or their feuars and lessees or other third parties deriving right from them or any of them (otherwise than in right of an interest or charge to which the interest of the owner was subject immediately before the agreement was made) to the same extent as it is binding upon that owner, notwithstanding that it would not have been binding upon the said assignees and others apart from the provisions of this subsection.

Restriction on
diverting,
culverting,
etc., of
streams.

12.—(1) No person shall, without the consent of the Board—
 (a) divert any part of a stream; or
 (b) enclose, pipe or culvert any part of a stream ;
 so that the part diverted, enclosed, piped or culverted exceeds 400 metres in length:

Provided that—

- (i) a consent required under this section shall not be unreasonably withheld;
- (ii) a consent required under paragraph (a) of this subsection shall not be withheld unless the Board are of opinion that the proposed diversion will prejudice the maintenance of the existing cleanliness of the stream;
- (iii) a consent required under paragraph (b) of this subsection shall not be withheld if the works of enclosure, piping or culverting afford such provision as is reasonably required by the Board for access to the waters of the part of the stream to be enclosed, piped or culverted, for the purpose of the exercise of the Board's powers under sections 18 and 19 of the Act of 1951 (which relate to the gauging of the flow or volume and other characteristics and the obtaining of samples of water in any stream in their area); and
- (iv) a consent shall not be required under this section in respect of the taking of water from, or diversion of, any part of a stream, or to the enclosing, piping or culverting of any part of a stream, by a water board in exercise of their statutory powers.

(2) In any case to which subsection (1) of this section applies, plans and sections of the proposed works shall before their commencement be submitted to the Board for their approval and no such works shall be constructed or altered otherwise than in accordance with plans and sections as so approved.

(3) A consent or approval required under this section shall, if neither given nor refused within two months after application therefor is made, be deemed to have been given.

(4) If any person executes any work in contravention of this section the Board may remove, alter, or pull down the work and recover from that person the expenses incurred in doing so.

(5) If any question arises under this section whether any consent or approval is unreasonably withheld or whether any condition imposed is reasonable the question shall—

(a) if the parties agree to arbitration, be referred to a single arbiter agreed between the parties or, in default of agreement, appointed by the President of the Institution of Civil Engineers;

(b) if the parties do not agree to arbitration, be referred to and determined by the Secretary of State.

(6) Without prejudice to the operation of section 4 of and the Second Schedule to that Act nothing in this section shall apply to works executed pursuant to any flood prevention scheme made pursuant to section 4 of the Flood Prevention (Scotland) Act, 1961.

1961 c. 41.

13.—(1) Notwithstanding anything in the Act of 1951 or the Act of 1965, the Board may introduce colourisers or tracers into underground strata and in so doing shall be deemed for all purposes to be exercising the functions of the Board.

Power to introduce tracers into underground strata.

(2) (a) Where in the exercise of the powers of this section any damage or loss is suffered by any person having a proprietary interest in waters affected by the exercise of those powers or by any water board in respect of their waterworks, that person or board shall be entitled to compensation in respect of that damage or loss from the Board; and any dispute as to a right to compensation from the Board under this paragraph, or as to the amount of any such compensation, shall be determined by the Lands Tribunal; and in relation to the determination of any such dispute the provisions of sections 9 and 11 of the Land Compensation (Scotland) Act, 1963, shall apply, subject to any necessary modifications.

1963 c. 51.

(b) The Board shall indemnify any water board in respect of any claim made against them, being a claim arising by reason of the exercise of the powers of this section:

Provided that a water board to whom such a claim is made shall give to the Board reasonable notice of the claim and no settlement or compromise thereof shall be made without the prior consent of the Board.

14. As from the appointed day, section 19 of the Act of 1951 in its application to the Board and the area of the Board shall have effect as if at the end of subsection (1) there were added the words “or into underground strata within the meaning of the Clyde River Purification Board Act, 1972”.

Sampling of effluents discharged to underground strata.

Amendment
of section 20
of Act of
1951.

15. Subsection (5) of section 20 of the Act of 1951 shall, in its application to the Board and the area of the Board, have effect as if after the word “persons” there were inserted the words “and such equipment” and as if there were inserted the following subsections:—

“(5A) Admission with heavy equipment to any land shall not except in an emergency be demanded as of right under this section unless seven days’ notice in writing of the intended entry has been given to the occupier.

(5B) A person shall not by virtue of this section be entitled to enter or remain on land occupied by statutory water undertakers unless he complies with any reasonable requirements imposed by the undertakers for the purpose of protecting water against pollution; and any question arising under this subsection as to what requirements are reasonable shall, in case of dispute, be determined by the Secretary of State, whose decision shall be final.

(5C) Where in the exercise of any power conferred by this section any damage is caused to land or to movable property, any person interested in the land or movable property shall be entitled to compensation in respect of that damage from the river purification authority; and where in consequence of the exercise of any such power any person is disturbed in his enjoyment of any land or movable property, he shall be entitled to compensation from the river purification authority in respect of that disturbance.

(5D) Any dispute as to a right to compensation from the river purification authority under the last preceding subsection, or as to the amount of any such compensation, shall be determined by the Lands Tribunal; and in relation to the determination of any such dispute the provisions of sections 9 and 11 of the Land Compensation (Scotland) Act, 1963, shall apply, subject to any necessary modifications.”

1963 c. 51.

For
protection of
county councils
of Argyll,
Lanark and
Renfrew.

16. For the protection of the county councils of the counties of Argyll, Lanark and Renfrew (hereinafter referred to respectively as “the county council”) the following provisions shall, unless otherwise agreed in writing between the Board and the county council, apply and have effect:—

(1) In the exercise of their functions under the provisions of this Act specified in paragraph (2) of this section in, or in relation to, any part of their area, the Board shall consult with the county council for the county in which that part of their area lies:

(2) The provisions of this Act hereinbefore referred to are the following:—

Section 3 (Control of discharges in or to underground strata);

Section 9 (Control of the commercial abstraction of sand and gravel from streams);

Section 10 (Power to acquire and operate reservoirs);

Section 11 (Agreements with respect to the operation of reservoirs);

Section 12 (Restriction on diverting, culverting, etc., of streams).

17.—(1) The following provisions of the Act of 1951 shall apply in relation to the purposes of this Act and as if references in the said provisions to that Act included references to this Act:—

Section 20 (Powers of entry and inspection);

Section 21 (Penalty for obstruction);

Section 30 (1) and (2) (Local inquiries);

Section 33 (Supplementary powers of the Secretary of State).

(2) Subsections (8) and (9) of section 22 of the Act of 1951 (which relates to offences by bodies corporate) shall with necessary modifications apply with respect to offences under the provisions of this Act as they apply to offences under that section.

18. The costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board.

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Clyde River Purification Board Act 1972

CHAPTER v

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Control of discharges in or to underground strata.
4. Transitional exemption of discharges from control.
5. For protection of Inver House Distillers Limited.
6. Register of consents to underground discharges.
7. Protection of sources of supply.
8. Emergency and other measures in case of pollution of waters.
9. Control of the commercial abstraction of sand and gravel from streams.
10. Power to acquire and operate reservoirs.
11. Agreements with respect to the operation of reservoirs.
12. Restriction on diverting, culverting, etc., of streams.
13. Power to introduce tracers into underground strata.
14. Sampling of effluents discharged to underground strata.

Section

15. Amendment of section 20 of Act of 1951.
16. For protection of county councils of Argyll, Lanark and Renfrew.
17. Application of certain provisions of Act of 1951.
18. Costs of Act.